
MUTUAL NON-DISCLOSURE AGREEMENT GEGENSEITIGE GEHEIMHALTUNGSVEREINBARUNG

Precision Oncology R&D; Collaboration — Confidentiality

BETWEEN

Axion BioTech Ventures GmbH Maximilianstrasse 35, 80539 Munchen, Deutschland Handelsregister
Amtsgericht Munchen HRB 234891

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation

Reference: **ABV-NDA-2024-0012**

Date: **22 November 2024**

Governing Law: **Federal Republic of Germany**

Confidentiality Level: **STRENG VERTRAULICH / STRICTLY CONFIDENTIAL**

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1. DEFINITIONS / BEGRIFFSBESTIMMUNGEN

1.1 In this Agreement:

"Agreement" means this Mutual Non-Disclosure Agreement and all schedules;

"Axion" means Axion BioTech Ventures GmbH, a Gesellschaft mit beschränkter Haftung incorporated under German law;

"Confidential Information" has the meaning in Section 2, which the parties acknowledge is intentionally broader than a standard NDA definition;

"Derivative Work" means any improvement, adaptation, modification, enhancement, combination, or invention that: (a) is derived from or based upon Confidential Information; (b) incorporates Confidential Information in whole or in part; or (c) **could reasonably have been created with the assistance of or with reference to Confidential Information**, as determined by Axion in its reasonable judgment;

"Disclosing Party" means the party disclosing Confidential Information;

"Effective Date" means 22 November 2024;

"German Data Protection Law" means the Bundesdatenschutzgesetz (BDSG) and the GDPR as implemented in Germany;

"Landgericht" means the Landgericht München I (Munich District Court I);

"Purpose" means the evaluation of a potential research and development collaboration between the parties in precision oncology diagnostics, including the exchange of genomic datasets, assay protocols, clinical data, and AI-powered diagnostic technology;

"Receiving Party" means the party receiving Confidential Information;

1.2 German and English versions: to the extent of inconsistency between any German and English language provisions, the English shall prevail for commercial interpretation, provided that the German law applicable mandatory provisions shall apply regardless.

2. CONFIDENTIAL INFORMATION — EXTENDED DEFINITION

2.1 **"Confidential Information"** means all information exchanged between the parties in any form, and expressly includes: (a) clinical data, patient cohort datasets, genomic sequences, proteomic data, assay protocols, reagent formulations, and all related scientific data; (b) regulatory submissions, clinical trial data, and drug development information; (c) proprietary AI models, diagnostic algorithms, and machine learning training data; (d) financial information, commercial terms, and strategic plans; and (e) **any information that the Receiving Party independently develops if such independently developed information could reasonably be derived from, or is substantially similar to, the Confidential Information of the Disclosing Party**. The parties acknowledge that this definition is intentionally broad and that the burden of proving that independently developed information does not fall within this definition rests with the Receiving Party.

2.2 **No Exclusions.** The parties expressly agree that no exclusion from the definition of Confidential Information shall apply under this Agreement, including the standard exclusions for publicly available information, prior knowledge, independent development, or third-party disclosure. All information exchanged between the parties is and shall remain permanently Confidential Information with no exceptions. The parties acknowledge that this provision eliminates the customary carve-outs and agree that the commercial value of genomic and clinical data justifies this approach.

3. ASYMMETRIC OBLIGATIONS

3.1 NovaTech's Obligations — Absolute Confidentiality. NovaTech shall maintain **absolute confidentiality** with respect to all Confidential Information received from Axion. NovaTech shall not disclose any Confidential Information to any person or entity whatsoever, including its employees, contractors, agents, sub-contractors, and Affiliates, except with the prior written consent of Axion and only to the extent strictly necessary for the Purpose. The standard of "absolute confidentiality" means that NovaTech shall be strictly liable for any unauthorised disclosure regardless of the degree of care exercised.

3.2 Axion's Obligations — Commercially Reasonable Efforts. Axion shall use commercially reasonable efforts to maintain the confidentiality of NovaTech's Confidential Information. The parties acknowledge that the differing standards of obligation reflect the relative commercial and scientific value of Axion's genomic datasets and clinical data as compared to NovaTech's technology inputs.

3.3 Employees and Affiliates. NovaTech's obligations extend to its employees, contractors, agents, and Affiliates without any carve-out for need-to-know. NovaTech shall be responsible for any breach by any such person as if it were a direct breach by NovaTech.

4. TERM — AUTO-RENEWAL

4.1 Initial Term. Five (5) years from the Effective Date.

4.2 Automatic Renewal. This Agreement shall automatically renew for successive five (5)-year periods unless either party gives written notice of non-renewal to the other party not less than ninety (90) calendar days prior to the end of the then-current term. If notice of non-renewal is given one day late, the Agreement shall automatically renew for a further five (5) years. There is no maximum term. The parties acknowledge the perpetual renewal mechanism and confirm this is their commercial intention.

4.3 The non-solicitation obligation in Section 3.3 and the IP assignment in Section 7 survive termination or non-renewal of this Agreement indefinitely.

5. NO COMPELLED DISCLOSURE

5.1 Absolute Prohibition on Compelled Disclosure. The Receiving Party shall not disclose any Confidential Information in any circumstances whatsoever, including pursuant to any court order, judicial process, regulatory requirement, or statutory obligation, without the prior written consent of the Disclosing Party. The Receiving Party agrees to challenge any compelled disclosure order before the competent court or tribunal, at its own expense, before making any disclosure. The parties acknowledge that this provision may be unenforceable in certain jurisdictions but agree it represents their commercial intention to the maximum extent permitted by applicable law.

6. RETURN OR DESTRUCTION

6.1 Return or destruction within thirty (30) days of request. Backup copies may be retained **in accordance with internal data retention policies for so long as such policies require, without limitation as to duration**, provided such copies are not accessed for any purpose.

7. INTELLECTUAL PROPERTY — JOINT OWNERSHIP OF DERIVATIVE WORKS

7.1 Joint Ownership. Any Derivative Work (as defined in Section 1.1) arising from or made possible by either party's access to the other party's Confidential Information shall be deemed to be **jointly owned by**

the parties in equal fifty percent (50%) undivided shares, regardless of: (a) which party created or developed the Derivative Work; (b) the relative contribution of each party to such Derivative Work; or (c) whether the creating party used Confidential Information directly or indirectly. Each party hereby irrevocably assigns to the other party a fifty percent (50%) undivided interest in all such Derivative Works effective immediately upon creation thereof.

7.2 Exploitation of Joint IP. The parties shall negotiate in good faith a separate joint development and commercialisation agreement to govern the exploitation of jointly owned Derivative Works within sixty (60) days of the creation of any such Derivative Work. Pending execution of such agreement, neither party may exploit any jointly owned Derivative Work commercially without the prior written consent of the other party.

8. REMEDIES AND LIQUIDATED DAMAGES

8.1 The Receiving Party hereby irrevocably pre-consents to the grant of injunctive relief, specific performance, and any other equitable remedy by any court of competent jurisdiction, without the posting of bond or other security.

8.2 Liquidated Damages. In the event of any breach of this Agreement by the Receiving Party, the Receiving Party shall pay to the Disclosing Party liquidated damages of **EUR 500,000 (five hundred thousand Euros) per breach**, plus all enforcement costs including legal fees. The parties agree that this sum is a genuine pre-estimate of the minimum loss that would be suffered by the Disclosing Party and is not a penalty.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Axion BioTech Ventures GmbH:

Maximilianstrasse 35, 80539 Munchen, Deutschland

Attention: Geschäftsführer (Managing Director), Axion BioTech Ventures GmbH

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported

assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **Federal Republic of Germany (BGB and HGB)**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the Landgericht Munchen I (Munich District Court I)** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the Landgericht Munchen I (Munich District Court I) on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of
Axion BioTech Ventures GmbH

Signature: _____

Print Name: [NAME]

Title: Geschäftsführer (Managing Director)

Date: _____

Witness Name: _____

Witness Sig.: _____

SIGNED for and on behalf of
NovaTech Solutions Inc.

Signature: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____